FARAI CHITUNYA
versus
IRIKIDZAI MABULALA

HIGH COURT OF ZIMBABWE
MHURI J
HARARE; 12 & 17 November 2025

Special Plea

Mr *M B Lunga*, for Plaintiff
Ms *R Madondo*, for Defendant

MHURI J: On 25 November 2024, Plaintiff caused the issuance of summons claiming;

a) Sharing of property acquired by the parties during the subsistence of their unregistered customary law union following dissolution of the union.
b) An order that each party bears its own costs.

In her declaration, Plaintiff avers that: 1. their unregistered customary law marriage entered into 2009 was terminated sometime in 2010. The Plaintiff was forcibly removed from the matrimonial home after being given a divorce token. The parties worked to acquire the property which Defendant now refuses to share with her.

2. Although the Plaintiff and the Defendant were married under an unregistered customary law union, they lived a modern lifestyle throughout the duration of their union. Applying customary law to their case of property sharing will not be appropriate in the circumstances and will lead to an injustice being committed.

3. She has approached this court for an order for an equitable division of their property. This court has jurisdiction to apply the general law principle of Tacit Universal Partnership in this matter.

In her heads of argument, Plaintiff reiterated the averment that although she and Defendant were married under an unregistered customary law union they lived a modern lifestyle throughout the duration of their union. This court has jurisdiction to apply the General Law Principle of Tacit Universal Partnership in this matter.

After requesting for further particulars and provided with same by Plaintiff, Defendant , raised a special plea in bar to the effect that Plaintiff's claim has prescribed in terms of s14 and s15 of the Prescription Act [*Chapter 8:11*], in that the summons were sued out more than three years from the date the cause of action arose, that according to para 4 of Plaintiff's declaration, the tacit universal partnership was dissolved sometime in 2010 and the summons were issued on the 25th November 2024, a period in excess of three years.

In his heads of argument, Defendant based his arguments on the Plaintiff's averments in her declaration to establish that the Prescription Act applies in this case. He states;

> "In para 6 of her declaration the Plaintiff states that although the parties were married under an unregistered customary law union, they lived a modern lifestyle throughout the duration of their union. She states further that applying customary law to the case of property sharing will not be appropriate in the circumstances and will lead to an injustice being committed.
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> In para 7 of her declaration, the Plaintiff requests the Honourable Court to apply the general law principles of Tacit universal partnership, although she does not plead the essential elements of the claim."

It was Defendant's submission that a claim that is based on a Tacit Universal Partnership is premised on general law and is therefore subject to the Prescription Act. It was his further submission that a Partnership is a contract between the parties and in terms of the Prescription Act, an obligation that arises from a contract is subject to prescription. What Plaintiff is claiming is property acquired during the subsistence of this partnership, and what she is entitled to then gives rise to an obligation that Defendant must discharge in terms of the partnership.

To support his submissions, Defendant cited the cases of *Esther Ngaru* v *Livingstone Kusano* HH 265/21 *and Mutswakatira* v *Munanga & Anor* HH 381/23

It was contended by Defendant that the marriage was dissolved in 2010 and the summons were issued in 2024 November and therefore what this means is that the cause of action arose in 2010 and the claim ought to have been raised within a period of three years of 2010. By her failure to file within three years of 2010, Plaintiff's right to claim became extinguished.

It was submitted that the Prescription Act only exempts those matters that are premised on customary law from the application of the Act. Once she accepts that her claim is premised on the general law principle, then her claim is subject to prescription.

It was Defendant's submission that Plaintiff's claim has prescribed and accordingly should be dismissed.

In response to the special plea, Plaintiff's submissions were that prescription does not apply in the circumstances of this case on the reasons that the date when the cause of action arose is not known. For the court to find that the debt prescribed, there has to be a date from which the said debt became due. The case of *Ngaru* v *Kusano* (*supra*) was distinguished on the basis that the facts of that case specifically indicate when the marriage was dissolved and how it was dissolved and the Judge therein stated that the day on which a divorce token was given is the day the cause of action arose, which is different in this case. We were not told when the traditional requirements of dissolving the marriage were performed.

It was argued that even if it were to be accepted that the cause of action arose in 2010, the question that arises is whether or not a marriage partnership falls under the definition of what we call a debt. Reliance was made on the case of *Sibusisiwe Dube* v *Jan Henri Val Bel* HH 199/22.

The submission was made that the claim has not prescribed, for at the date of the claim a debt had not been established. She referred to s16(1) of the Prescription Act for this submission. On that note, there is no way Defendant can submit that the claim has prescribed.

It was submitted that the special plea be dismissed and the Plaintiff's claim be allowed to proceed to finality.

I did not hear Plaintiff take his other argument any further that in terms of s 15 the claim prescribes after thirty years.

It is common cause that the Plaintiff and Defendant were in an unregistered customary union. The parties acquired movable and immovable properties during the subsistence of their marriage. The marriage was dissolved. When? The answer is found in the Plaintiff's declaration. In para 4 thereat, Plaintiff clearly states the marriage was dissolved sometime in 2010. It was noted however that in her heads of argument, Plaintiff changed the year to 2021 and from the bar, her legal practitioner tried to explain that the 2010 year was a typing error, which explanation could not be accepted. The submission therefore that the date when the cause of action is not known is without merit.

It is also common cause that Plaintiff instituted this action claiming certain properties in 2024. She made the claim, as her declaration shows in terms of the general law, her contention being that her marriage was a Tacit Universal Partnership and therefore if the claim were to be under customary law, it would be unjust.

It is my finding that the marriage was dissolved in 2010. In her declaration, Plaintiff stated it was after the payment of the divorce token. The payment of a divorce token is a recognized and accepted manner of dissolving an unregistered customary union.

I find therefore that the cause of action arose in 2010. Contrary to the submission by Plaintiff that the case of *N*garu v *K*usona (*supra*) is different from hers in that hers does not have a date when the union was dissolved, her case is actually on all fours with Ngaru case. The Ngaru case states that the date that the marriage is dissolved, is the date the cause of action arises. I associate myself with findings in that case. I am also persuaded by the Defendant's submission that if it is the position that for one to invoke prescription, there has to be agreement over the property first or an order of the court, then how did the Plaintiff find her way into the court without such agreement or order or an enforceable claim.

Having proceeded under general law, I find as correctly submitted by Defendant that Plaintiff's claim falls under the Prescription Act, and to that end it is affected by prescription if it is not brought within the time period stated in the Act. As at 2010 when she was given a divorce token and removed from the matrimonial home, she was aware of her right vis a vis the properties she was to lay claim on and that Defendant had an obligation to discharge as far as that property was concerned.

As submitted by Defendant, Plaintiff is not approaching this court for an assessment of what she is entitled to in terms of the partnership, but she comes to court with specific properties she is claiming from the partnership and it is this share of the properties that she assumed Defendant is obligated to give to her. In my view, this is a debt which is defined by what she is claiming as her share.

This debt is subject to prescription. Section 2 of the Prescription Act defines debt as follows;

> "debt", without limiting the meaning of the term, includes anything which may be sued for or claimed by reason of an obligation arising from statute, contract, delict or otherwise."

Section 15 provides for the periods of prescription of debts. Sub paragraph (d) provides;

> "Except where any enactment provides otherwise, three years, in the case of any other debt."

Sub paragraph (a) does not apply to Plaintiff as it speaks to;

- A debt secured by mortgage bond

- A judgement debt
- A debt in respect of taxation
- A debt owed to the State which is not the case in *casu*.

For prescription not to apply to her case, as rightly submitted by Defendant, Plaintiff ought not to have proceeded under general law but customary law for which the Prescription Act does not apply. Section 3(2) of the Prescription Act is apt. It provides;

> "In so far as any rights or obligation of any person in relation to any other person is governed by customary law this Act shall not apply."

Section 14 also provides for the extinction of debts by prescription. In particular subsection (1) provides as follows;

> "Subject to this Part and Part V, a debt shall be extinguished by prescription after the lapse of the period which in terms of the relevant enactment applies in respect of the prescription of such debt."

As alluded to earlier, the union was dissolved in 2010 and this action was instituted in 2024 which is 14 years later. It being a debt, the claim ought to have been made at least by 2013. It was made way after and is therefore prescribed.

To that end, I uphold the special plea and order that Plaintiff's claim be and is hereby dismissed for it has prescribed.

Plaintiff shall bear Defendant's costs.

MHURI J:.....

TSARA & ASSOCATES: Plaintiff's Legal Practitioners
MABULALA & DEMBURE: Defendant's Legal Practitioners